

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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DAVID R. JOHNSON, ARLENE QUICK, individually, and
as mother and natural guardian of DAVID S. JOHNSON,
INFINITE BARNETT and NASEEM BARNETT,

Plaintiffs,

-against-

CITY OF NEW YORK, POLICE OFFICER ALBERT
ANZALONE, POLICE OFFICER FATMIR USEINI, and
POLICE OFFICERS "JOHN DOE" whose identities are
currently unknown.

Defendants.
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AMENDED COMPLAINT

JURY TRIAL DEMANDED

Index No.: 08cv3673 (NG)(LB)

Plaintiffs, by their attorneys, MARK L. LUBELSKY & ASSOCIATES, complaining of
the Defendants, alleges as follows:

NATURE OF CASE

1. This is an action by a citizen of the United States brought to remedy a deprivation of his civil rights by person(s) acting under color of state law in violation of 42 U.S.C. Section 1983 seeking damages, and other appropriate legal and equitable relief.

PROCEDURAL AND JURISDICTION PREREQUISITES

2. Plaintiff has complied fully with all prerequisites to jurisdiction in this Court.
Jurisdiction of the court is proper under 28 U.S.C. Sections 1331 and 1343 and 42 U.S.C. Section 1983.

3. As the unlawful practices complained of herein occurred within the Southern District of New York, venue is proper.

PARTIES

4. Upon information and belief, that at all times hereinafter mentioned, Defendant THE CITY OF NEW YORK was and still is a municipal corporation having its principal place of business in the County, City and State of New York.

5. Upon information and belief, that at all times hereinafter mentioned, Defendant THE CITY OF NEW YORK operated, maintained and was responsible for The New York City Police Department located in the County of Manhattan, City and State of New York.

6. Upon information and belief POLICE OFFICER ALBERT ANZALONE, deprived Plaintiff of his civil rights while acting under color of state law.

7. Upon information and belief POLICE OFFICER FATMIR USEINI deprived Plaintiff of his civil rights while acting under color of state law.

8. Upon information and belief defendant POLICE OFFICER ALBERT ANZALONE was employed by the New York City Police Department at all material times herein.

9. Upon information and belief defendant POLICE OFFICER FATMIR USEINI was employed by the New York City Police Department at all material times herein.

10. Upon information and belief defendant POLICE OFFICER ALBERT ANZALONE was employed by THE CITY OF NEW YORK at all material times herein.

11. Upon information and belief defendant POLICE OFFICER FATMIR USEINI was employed by THE CITY OF NEW YORK at all material times herein.

12. At all material times herein, Plaintiff was and is a resident of the State of New York.

13. Plaintiffs at all relevant times herein, resided in Staten Island, New York City, State New York.

MATERIAL FACTS

14. On or about July 6, 2007, Plaintiffs were lawfully in their apartment located at 6 Avenue B, Apartment 2, Staten Island, New York, 10302.

15. On or about July 6, 2007, Plaintiffs were lawfully in their apartment, when the Defendants unlawfully entered their residence.

16. On or about July 6, 2007, Plaintiffs were lawfully in their apartment, when the Defendants unlawfully entered and searched their residence.

17. On or about July 6, 2007, Plaintiffs were lawfully in their apartment, when the Defendants unlawfully entered and searched their residence without Plaintiffs' consent.

18. On or about July 6, 2007, Plaintiffs were lawfully in their apartment, when the Defendants unlawfully entered and searched their residence, without a warrant.

19. On or about July 6, 2007, Plaintiffs were lawfully in their apartment, when the Defendants unlawfully entered and searched their residence, without probable cause or exigent circumstances.

20. On or about July 6, 2007, Plaintiffs did not threaten Defendants in any manner at any point.

21. On or about July 6, 2007, at no time during the events described herein were Plaintiffs intoxicated, a threat to the safety of themselves or others or disorderly.

22. On or about July 6, 2007, Plaintiffs were deprived of their civil rights by Defendants while acting under color of state law.

23. Upon information and belief, Defendants intentionally attempted to deprive Plaintiffs of their liberty in violation of their civil rights.

24. Upon information and belief, Defendants intentionally deprived Plaintiffs of their liberty.

25. Upon information and belief, Defendants' entire course of conduct against Plaintiffs was as a result of a lack of training by Defendant CITY OF NEW YORK.

26. Upon information and belief, Defendants' entire course of conduct against Plaintiffs was as a result of a lack of improper supervision by Defendant CITY OF NEW YORK.

27. Upon information and belief, Defendants' entire course of conduct against Plaintiffs was as a result of a lack of improper hiring by Defendant CITY OF NEW YORK.

28. As a result of Defendants' actions, Plaintiffs had a reasonable apprehension of immediate harmful and offensive touching.

29. Defendants' behavior towards Plaintiffs was prohibited by federal law.

30. Plaintiffs' right not to be subject to the illegal conduct of Defendants described herein was clearly established on or about July 6, 2007.

31. It was objectively reasonable for Defendants to know that their conduct violated the rights of Plaintiffs on or about July 6, 2007.

32. It was objectively unreasonable that the Defendants did not know that their conduct violated the rights of Plaintiffs on or about July 6, 2007.

33. A reasonable officer in Defendants' position would not have thought his/her actions were lawful on or about July 6, 2007.

**AS A FIRST CAUSE OF ACTION ON BEHALF OF ALL PLAINTIFFS FOR
DEFENDANTS' UNLAWFUL ENTRY AND SEARCH OF PLAINTIFFS' RESIDENCE**

34. Plaintiffs repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "33" inclusive, with the same force and effect as if more fully set forth at length herein.

35. Plaintiffs have been deprived of their civil rights by Defendants while acting under color of state law in violation of 42 USC § 1983.

36. That by reason of the foregoing, all Plaintiffs have suffered damages and seek recovery of compensatory damages including but not limited to emotional distress damages and reasonable attorneys' fees and costs from all Defendants and punitive damages from all individual Defendants, in an amount to be determined upon the trial of this action.

AS A SECOND CAUSE OF ACTION

37. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "36" inclusive, with the same force and effect as if more fully set forth at length herein.

38. Defendants had a duty to properly train Defendant Officers and Defendants failed to properly train Defendant Officers.

39. The failure to properly train Defendant Officers caused Plaintiff to be deprived of his civil rights by a person(s) acting under color of state law in violation of 42 USC § 1983.

40. The failure to properly train Defendant Officers caused Plaintiff to be deprived of his civil rights by the Defendants acting under color of state law in violation of 42 USC § 1983.

41. Defendants had a duty to properly supervise Defendant Officers and Defendants failed to properly supervise Defendant Officers.

42. The failure to properly supervise Defendant Officers caused Plaintiff to be deprived of his civil rights by a person(s) acting under color of state law in violation of 42 USC § 1983.

43. That by reason of the foregoing, all Plaintiffs have suffered damages and seek recovery of compensatory damages including but not limited to emotional distress damages and reasonable attorneys' fees and costs from all Defendants and punitive damages from all individual Defendants, in an amount to be determined upon the trial of this action.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs demand judgment against the Defendants in an amount to be determined at trial including but not limited to compensatory damages against all Defendants and punitive against the Defendant Officers together with attorneys' fees and the costs and disbursements of this action.

JURY DEMAND

Plaintiffs demand a trial by jury.

Dated: New York, New York
October 29, 2009

MARK L. LUBELSKY AND ASSOCIATES

By: 

David Gottlieb, Esq.

Mark Lubelsky, Esq.

Attorneys for Plaintiffs

123 West 18th Street, Eighth Floor

New York, New York 10011

(212) 242-7480